

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Squad #14	CCRB Case #: 201602190	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 02/26/2016 9:12 PM	Location of Incident: § 87(2)(b) and en route to and at the 48th Precinct stationhouse		18 Mo. SOL 8/26/2017		Precinct: 48
Date/Time CV Reported Wed, 03/09/2016 6:44 PM	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Wed, 03/16/2016 11:10 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Lissette Henriquez	6194	954927	PBBX
2. POM Jerry George	4119	954858	PBBX
3. Officers			PBBX
4. SGT Frank Amill	02290	941345	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dharlyn Vasquez	30173	955625	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Lissette Henriquez	Force: At § 87(2)(b) in the Bronx, Police Officer Lissette Henriquez struck § 87(2)(b) with a blunt instrument.	A . Unsubstantiated
B . POF Lissette Henriquez	Force: Police Officer Lissette Henriquez used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Jerry George	Force: Police Officer Jerry George used physical force against § 87(2)(b)	C . Unsubstantiated
D . Officers	Force: At § 87(2)(b) in the Bronx, officers used physical force against § 87(2)(b)	D . Officer(s) Unidentified
E . POF Lissette Henriquez	Force: En route to the 48th Precinct stationhouse, Police Officer Lissette Henriquez hit § 87(2)(b) against an inanimate object.	E . Unsubstantiated
F . POM Jerry George	Discourtesy: At the 48th Precinct stationhouse, Police Officer Jerry George spoke discourteously to § 87(2)(b)	F . Unsubstantiated
G . SGT Frank Amill	Abuse: At the 48th Precinct stationhouse, Sergeant Frank Amill authorized the strip-search of § 87(2)(b)	G . Substantiated

Case Summary

On February 26, 2016, at approximately 9:12 p.m., on § 87(2)(b) in the Bronx, § 87(2)(b) was arrested by PO Lissette Henriquez of Patrol Borough Bronx after he was observed smoking a marijuana cigarette by PO Henriquez and her partner, PO Jerry George. The officers attempted to take § 87(2)(b) into custody, who resisted the officers' attempts to handcuff him. PO Henriquez allegedly hit § 87(2)(b) with a hard object on his back and the back of his knees (**Allegation A**). Additional units showed up and allegedly officers participated in punching § 87(2)(b) who was eventually handcuffed (**Allegation B, C, and D**). Once handcuffed, the officers were struggling to place him in a police vehicle and an officer approached § 87(2)(b) and allegedly punched him in the face. Another officer allegedly punched him in the stomach and once he was placed in the car, also allegedly punched him in the face (**Allegation D con't.**).

On the ride to the 48th Precinct stationhouse, PO Henriquez allegedly drove in an intentionally erratic way, causing § 87(2)(b) to be thrown around (**Allegation E**).

While at the 48th Precinct stationhouse, § 87(2)(b) asked PO George to release his debit card to his wife, PO George allegedly responded, "Well that's up to you, you should have thought about that before you wanted to be an asshole." (**Allegation F**). Sgt. Frank Amill of Patrol Borough Bronx then authorized the strip search of § 87(2)(b) (**Allegation G**).

A witness, § 87(2)(b) provided video footage of the incident, § 87(2)(g) (BR 15-16).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

This case was not suitable for mediation due to § 87(2)(b)'s arrest. As of May 19, 2016, § 87(2)(b) has not filed a notice of claim related to this incident (BR 01). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (BR 03).
- PO Henriquez has been a member of the NYPD for two years and has been the subject of six previous allegations, none of which were substantiated. Three of these allegations were not investigated due to truncating as complainant uncooperative. One search allegation was unsubstantiated, one stop allegation was exonerated, § 87(2)(g), § 87(4-b) . § 87(2)(g)
- PO George has been a member of the NYPD for two years and has been the subject of four previous allegations, none of which were substantiated. One allegation was not investigated due to truncating as complainant uncooperative. One frisk allegation was unsubstantiated, one stop allegation was exonerated, § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b) . § 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

- Sgt. Amill has been a member of the NYPD for nine years and has been the subject of 11 previous allegations. Four allegations were exonerated, three were unsubstantiated, and one was not investigated due to truncating as victim uncooperative. § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b) In CCRB case 201017481, a frisk allegation was substantiated and the CCRB recommended instructions and the NYPD issued instructions in regards. In CCRB case 201600739, a strip search allegation was substantiated and the CCRB recommended charges. The NYPD disposition is not known. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

According to § 87(2)(b) after additional units appeared on scene, approximately 12 officers began hitting him all over his body, except for his head. After about 15 minutes, the officers were able to handcuff § 87(2)(b). The officers began to try to place § 87(2)(b) in a police vehicle. While he was standing by the side of the police vehicle, an officer walked up to him and allegedly punched him on the right side of the face. Another officer then approached § 87(2)(b) and allegedly hit him in the stomach. Once § 87(2)(b) had been placed into the police car, the same officer that had hit him in the stomach got into the vehicle with him and allegedly punched him in the face (BR 04).

§ 87(2)(b) was unable to recall what any of these officers looked like, with the exception of two officers. He described the original officer who punched him in the face as a dark skinned Hispanic male in his early-mid 30s, standing 6’2” tall with an athletic build, dressed in grey Gap hoodie and a grey skull cap. He described the officer who punched him in the stomach and face as a white male in his early 40s, bald headed, and uniformed. § 87(2)(b) also noted that the officer looked like “The Commish.”

§ 87(2)(b) § 87(2)(b) s wife, arrived on scene and witnessed approximately six officers trying to push § 87(2)(b) into the car. Allegedly, the officers were hitting him, grabbing his head, and pushing him on his head, shoulders, and back. § 87(2)(b) could not recall what any of these officers looked like. Once § 87(2)(b) was in the car, both doors of the vehicle remained open, and it appeared like officers were inside the door and hitting § 87(2)(b) with something. There was an officer who twice exited and entered the vehicle with a lot of force and would not close the doors to the car. § 87(2)(b) described this officer as being male, light skinned, and uniformed (BR 05).

By all accounts, multiple units arrived on scene following § 87(2)(b) s initial apprehension.

§ 87(2)(g)

§ 87(2)(g) PO Henriquez stated that approximately three additional units arrived on scene, PO George believed that 5-6 additional

units showed up on scene, and PO Vasquez, who responded to the scene after hearing a call for additional units, stated there were already 8-9 units there when he arrived. PO Henriquez and PO George both stated that the 48th Precinct shares a radio with the 46th Precinct, thus it was likely officers from both commands were on scene. The event information for this incident, Event § 87(2)(b) lists the following units as being present: 48PP6, 48LT1, 48ST2, and 48SP42 (BR 06). 48PP6 corresponds to foot post #6, which consisted of PO Henriquez and PO George. 48LT1 and 48ST2 correspond to the lieutenant and sergeant units, which consisted of Lt. Whitlock and Sgt. Amill. According to a unit definitions list from the NYPD User Training Guide, 48SP42 corresponds to “OPEN, GLA, SQUAD.” It was unable to be determined which specific officers this corresponded to.

PO Henriquez, PO George, PO Vasquez, and Sgt. Amill were all interviewed for this incident. Although by multiple officer accounts, Sgt. Amill was on scene, he stated that he had no recollection of the incident. All officers denied seeing an officer punch § 87(2)(b). PO Henriquez and PO George denied or did not recall plainclothes officers as being on scene and neither they, nor PO Vasquez, could recall any specific officers that were present, with the exception of supervisors, Lt. Whitlock and Sgt. Amill. None of the officers interviewed matched the descriptions provided by § 87(2)(b). Sgt. Amill’s partner, PO McKnight, is a § 87(2)(b) white male, § 87(2)(b) with brown hair (BR 07). PO Vasquez was unable to recall who his partner was on the day of the incident. The roll call lists him as being assigned as the sergeant’s operator. However, PO McKnight is noted as being Sgt. Amill’s operator that day and PO Vasquez’s memo book lists him as being assigned to Post #7, thus it was unable to be determined who PO Vasquez’s partner was.

§ 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – Force: At § 87(2)(b) in the Bronx, Police Officer Lissette Henriquez struck § 87(2)(b) with a blunt object.

§ 87(2)(b) stated that PO George instructed him to place his hands behind his back. § 87(2)(b) asked why and the officers told him that he was going to the precinct because he was getting arrested. PO Henriquez began to try to pull § 87(2)(b)'s left arm/hand behind his back. § 87(2)(b) kept his body rigid so that she would be unable to do. PO George also came over and was trying to pull on § 87(2)(b)'s other arm. PO Henriquez started to grab § 87(2)(b)'s hand and noticed his phone was bending, which was in his right hand. She told § 87(2)(b) that he was going to break his phone and he responded that she was the one bending it and was going to break it. PO Henriquez then let go of his phone and kept trying to get his hand behind his back, § 87(2)(b) was still keeping his body rigid. PO Henriquez hit § 87(2)(b) with a hard object, he believed it was a flashlight, on his lower back and the back of his knees. PO George also pulled § 87(2)(b)'s hood up to cover his face. § 87(2)(b) was still resisting at this time, maintaining keeping his body rigid. Besides keeping his body rigid, § 87(2)(b) was not doing anything else to resist.

According to PO Henriquez, after she informed § 87(2)(b) that he was being arrested because he had been observed smoking marijuana, he did not want to give her his hands. § 87(2)(b) kept repeatedly turning away from her and pulling away from her. PO George came over to assist PO Henriquez, he was trying to grab one arm while she was trying to grab the other. § 87(2)(b) then laid his chest down on top of the car and put his hands under his chest. PO Henriquez and PO George were each trying to handcuff one of his wrists, they then planned to join the handcuffs together. PO Henriquez did not have her flashlight out during the incident and did not use her flashlight or baton to gain control of § 87(2)(b). PO Henriquez denied ever hitting § 87(2)(b) on his back or the back of his knees with a hard object, or ever seeing PO George do this (BR 08).

PO George stated that the officers told § 87(2)(b) to put his arms behind his back. This caused him to become agitated and scream. § 87(2)(b) started putting his hands in front of him and trying to “squirm away” from the officers. PO George could not recall, but believed that PO Henriquez grabbed one of § 87(2)(b)'s hands first. The officers were able to grab one hand to bring behind his back, and then § 87(2)(b) would squirm away, pulling his other hand away. When they went to grab the other hand, they lost their grip on the first one. PO George described this as happening several times, every time they grabbed one hand they were unable to get the other. PO George did not recall hitting § 87(2)(b) with any kind of object and did not see PO Henriquez hit § 87(2)(b) with an object on his back or the back of his knees. PO George did not recall if he or PO Henriquez had their flashlights out during the incident and did not see PO Henriquez use her flashlight to gain compliance of § 87(2)(b) (BR 09).

By all accounts, neither § 87(2)(b) Sgt. Amill, nor PO Vasquez were on scene during this portion of the incident.

§ 87(2)(b)'s medical records were obtained from § 87(2)(b). § 87(2)(a) PHL § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Force: At § 87(2)(b) in the Bronx, Police Officer Lissette Henriquez used physical force against § 87(2)(b)

Allegation C – Force: At § 87(2)(b) in the Bronx, Police Officer Jerry George used physical force against § 87(2)(b)

Allegation D – Force: At § 87(2)(b) in the Bronx, officers used physical force against § 87(2)(b)

§ 87(2)(b) stated that as PO Henriquez and PO George were attempting to handcuff him, 4-5 police cars pulled up, with a mix of uniformed and plainclothes officers. Allegedly the officers began hitting § 87(2)(b) all over his body, except for his head. After about 15 minutes, the officers were able to handcuff § 87(2)(b). The officers began to try to place § 87(2)(b) in a police vehicle. He was still resisting and keeping his body rigid. While he was standing by the side of the police vehicle, an officer walked up to him and punched him on the right side of the face. PO George was trying to force § 87(2)(b) into the vehicle by pushing on the top of his head. While this was happening, an officer hit § 87(2)(b) in the stomach. Once § 87(2)(b) had been placed into the police car, the same officer that had hit him in the stomach got into the vehicle with him and punched him in the face.

§ 87(2)(b)'s wife, § 87(2)(b) arrived on the scene after receiving a phone call from her mother in law and hearing screaming from down the street. According to her, when she arrived, § 87(2)(b) was by a police vehicle and approximately six officers were trying to push him into the car. The officers were hitting him, grabbing his head, and pushing him on his head, shoulders, and back. § 87(2)(b) was swinging at the officers. It took approximately three minutes for § 87(2)(b) to be placed in the police vehicle. Once § 87(2)(b) was in the car, both doors of the vehicle remained open and it appeared like officers were inside the door and hitting § 87(2)(b) with something, there was an officer who twice exited and entered the vehicle with a lot of force and would not close the doors to the car.

PO Henriquez stated that § 87(2)(b) was already handcuffed when the additional units arrived and the additional units only became physically involved when placing § 87(2)(b) into the car. PO George stated that § 87(2)(b) was “somewhat cuffed.” One officer assisted him and PO Henriquez with holding § 87(2)(b)'s arms. PO Vasquez stated that when he arrived on scene, § 87(2)(b) was already handcuffed. PO Henriquez, PO George, and PO Vasquez all denied seeing any officer punch § 87(2)(b).

PO Henriquez and PO George noted that after § 87(2)(b) was placed in the police vehicle, it was discovered that he had taken a lighter out and was playing with it, flicking it on and off. An officer, they did not recall who, went into the vehicle and removed the lighter from § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations B** and **C** be closed as **unsubstantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **officers unidentified**.

Allegation E - Force: En route to the 48th Precinct stationhouse, Police Officer Lissette Henriquez hit § 87(2)(b) against an inanimate object.

§ 87(2)(b) was taken to the stationhouse, he was transported by PO Henriquez and PO George. On the ride, PO Henriquez asked § 87(2)(b) if he had ever played Grand Theft Auto, § 87(2)(b) told her he was not into video games. Allegedly PO Henriquez then started driving erratically, hitting curbs, so that § 87(2)(b) was “flying” around in the backseat.

PO Henriquez stated that she and PO George transported § 87(2)(b) back to the precinct stationhouse, and that she was driving. She denied that there was any conversation about video games or that she ever made a comment about the game Grand Theft Auto, or that PO George made comments about it. There were no issues driving to the stationhouse and § 87(2)(b) never complained about being jostled around in the back seat. PO Henriquez denied ever intentionally driving so that § 87(2)(b) would be jostled around in the back.

PO George stated that he and PO Henriquez transported § 87(2)(b) and that PO Henriquez was driving. On the ride, § 87(2)(b) was screaming and kicking. He told the officers that he was going to sue them and was squirming around in the back. PO George denied that there was ever any conversation about video games or that PO Henriquez made a comment to § 87(2)(b) about Grand Theft Auto. PO George denied that PO Henriquez was ever driving and swerving the car around, causing § 87(2)(b) to move back and forth in the backseat.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F – Discourtesy: At the 48th Precinct stationhouse, Police Officer Jerry George spoke discourteously to § 87(2)(b)

According to § 87(2)(b) while he was at the front desk having his property vouchered, he asked PO George if his debit card could be released to his wife because it is their shared account card and she would not have any way to care for herself without it. PO George told him, “Well that’s up to you, you should have thought about that before you wanted to be an asshole.”

PO George did not recall any conversation about § 87(2)(b)’s debit card or him wanting his personal possessions released to his wife. PO George denied ever saying to § 87(2)(b) “Well, that’s up to you, you should have thought about that before you wanted to be an asshole.” He denied ever using the word “asshole,” using any profanity, or hearing any other officer say something similar to that. PO Vasquez did not ever hear PO George make this statement or use any profanity while speaking with § 87(2)(b).

§ 87(2)(g)

It is recommended that **Allegation F** be closed as **unsubstantiated**.

Allegation G – Abuse of Authority: At the 48th Precinct stationhouse, Sergeant Frank Amill authorized the strip-search of § 87(2)(b)

§ 87(2)(b) alleged that after he was brought to the 48th Precinct stationhouse, PO George, PO Vasquez, and three other officers strip-searched him.

PO Vasquez and PO Henriquez both stated that a strip search occurred. PO Henriquez did not recall which officers were involved with performing the strip search. PO Vasquez identified himself, PO George, and two other officers he could not recall as performing it. PO Vasquez stated that § 87(2)(b) and the officers went to the bathroom, located in front of the front desk at the stationhouse, where the strip-search was performed. According to PO Vasquez, the officers issued § 87(2)(b) orders to remove every piece of clothing, the strip search took approximately 3-5 minutes, and nothing was found during it (BR 10). PO George denied that § 87(2)(b) was searched at any location besides that front desk, was ever brought to the bathroom to be searched, or was ever issued instructions to remove his clothing. PO George did not believe that he suspected § 87(2)(b) of having any additional narcotics on him or suspect him of hiding any further contraband.

PO Henriquez and PO Vasquez both stated that the strip search was performed at the direction of Sgt. Amill. PO Henriquez did not provide Sgt. Amill with any specific reasons she thought § 87(2)(b) should be strip-searched and was not suspicious that he had any additional contraband on him, besides the fact that “he just finished resisting, at that point I don’t know what he has on him.” PO Henriquez stated that while she was standing at the front desk, a detective from the 48th Precinct detective squad told her that § 87(2)(b) had previously slashed a corrections officer at Rikers and she should be careful. PO Henriquez did not tell this information to Sgt. Amill. He was standing right next to her, but PO Henriquez was not sure if he overheard or not. PO Vasquez said that as soon as he arrived at the stationhouse, Sgt. Amill ordered him to help with the strip search. Sgt. Amill did not provide him with any reasons or details about why § 87(2)(b) was being strip-searched.

Sgt. Amill denied having any recollection of this incident. Sgt. Amill had a memo book entry that noted he had verified § 87(2)(b)’s arrest, however he did not recall this, being at the arrest scene, or returning to the stationhouse afterwards. The command log was shown to Sgt. Amill, it contains an entry for § 87(2)(b)’s arrest (BR 12). Sgt. Amill confirmed that the entry had been written by him. Sgt. Amill did not remember if he ever instructed any officers to strip search § 87(2)(b) or if he authorized any strip searches on the night of the incident (BR 11).

There was no notation of a strip search in the command log, PO Henriquez or PO Vasquez’s memo book, or § 87(2)(b)’s arrest report. PO Henriquez, who prepared the arrest report, stated that to her recollection, when she had prepared the report she had noted § 87(2)(b) as being strip searched; however, PO Henriquez viewed the arrest report during her CCRB interview and was unable to locate a portion of the report that noted him as being strip searched.

§ 87(2)(g)

According to People v. Hall, 10 NY3d 303 (2008), in order to strip search an individual, an officer must have an “articulable factual basis supporting a reasonable suspicion, beyond probable cause to arrest, to believe that the arrestee secreted contraband, evidence, or a weapon (BR 13).

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **substantiated**.

Squad: 14

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date